

20STCV47375 20STCV47375

County: los-angeles

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Case Number: 20STCV47375 Hearing Date: September 9, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 9, 2026

Case Name: Spinning Gold, LLC v. Habrich, et al.

Case No.: 20STCV47375

Matter: Demurrer

Moving Party: Alexander Habrich and 3761444 Canada, Inc.

Responding Party: Spinning Gold, LLC, Bogart, and Martins

Notice: OK

Ruling: The Demurrer is overruled.

The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an entertainment dispute.

The trial date is September 21, 2026.

On June 15, 2026, Alexander Habrich and 3761444 Canada, Inc. filed the operative Third Amended Cross-Complaint (TACC).

On July 22, 2026, Cross-Defendants Spinning Gold, LLC, Timothy Scott Bogart, and Jessica Martins filed their Answer to the TACC.

Habrich and 3761444 Canada, Inc. now demur to the Answer to the TACC.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Cross-Complainants contend that all eight challenged defenses are "sham" pleadings that fail as a matter of law based on two core theories: (1) Cross-Defendant Bogart's December 10, 2020 declaration constitutes binding "judicial admissions," and (2) the Court's January 29, 2021 preliminary injunction order (stipulated as permanent on September 24, 2025) constitutes the "law of the case" establishing that no foreclosure occurred and that the agreements were invalid. Both arguments fail as a matter of law.

Under settled California law, a judicial admission is a formal, conclusive concession made in an operative pleading or formal stipulation that entirely removes a fact from issue (Walker v. Dorn (1966) 240 Cal.App.2d 118, 120; Weiss v. Baba (1963) 218 Cal.App.2d 45, 50).

Pretrial witness declarations offered in support of interlocutory motions (such as preliminary injunction applications) constitute evidentiary admissions, not judicial admissions (Walker, supra, 240 Cal.App.2d at pp. 120–121). Statements made in Bogart's 2020 declaration may be used by Cross-Complainants as evidence or for impeachment at trial, but they do not conclusively bind Cross-Defendants as a matter of pleading law or render subsequent affirmative defenses sham on demurrer.

The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy (Weingand v. Atlantic Savings & Loan Assn. (1970) 1 Cal.3d 806, 820; Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 528).

The "law of the case" doctrine applies exclusively to legal determinations made by an appellate court in a prior appeal or writ proceeding governing subsequent trial court proceedings (Kowis v. Howard (1992) 3 Cal.4th 888, 892–895). It does not apply to interlocutory rulings made by a trial court.

The parties' September 24, 2025 stipulation converting the preliminary injunction to a permanent injunction resolved specific prospective injunctive relief regarding UCC filings and status quo preservation. It did not resolve all underlying factual

disputes regarding performance, breach, interference, or monetary offset.

Once the evidentiary assertions and interlocutory rulings are properly evaluated under the standard of review, each challenged defense presents triable issues of historical fact. Therefore, the Demurrer is overruled. The RJN is granted.

For the same reasons, the Motion to Strike is denied.

Moving party to give notice.